

24AVCV01191 24AVCV01191

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-09-22

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Case Number: 24AVCV01191 Hearing Date: September 22, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

MARGARET L MASCIAVE, an individual,

Plaintiff,

v.

GENERAL MOTORS LLC; and DOES 1 through 50, inclusive,

Defendants.

Case Number 24AVCV01191

[TENTATIVE]

RULING ON MOTION

Date of Hearing: September 22, 2026

Dept. A-14

Judge William H. Forman

I. Background

This action arises from alleged violations of the Song-Beverly Consumer Warranty Act (the “Song-Beverly Act”). Defendant General Motors LLC (“Defendant”) moves to strike or tax costs from Plaintiff’s Counsel’s Memorandum of Costs.

On September 23, 2024, Plaintiff Margaret L Masciave (“Plaintiff”) filed her Complaint against Defendant, asserting five causes of action for (1) Violation of Subdivision (d) of Civil Code section 1793.2, (2) Violation of Subdivision (b) of Civil Code section 1793.2, (3) Violation of Subdivision (a)(3) of Civil Code section 1793.2, (4) Breach of Express Written Warranty in Violation of Civil Code sections 1791.2 subdivision (a) and 1794, and (5) Breach of the Implied Warranty of Merchantability.

On October 23, 2024, Defendant filed its Answer.

On March 16, 2026, Plaintiff filed a Notice of Settlement of the Entire Case.

On June 1, 2026, Plaintiff filed her Memorandum of Costs (the “Memorandum”).

On June 8, 2026, Defendant filed its Motion to Tax Costs.

On September 9, 2026, Plaintiff filed her Opposition.

On September 15, 2026, Defendant filed its Reply.

Plaintiff’s separate Motion for Attorney’s Fees and Costs is set for hearing on November 17, 2026.

II. Preliminary Procedural Issues

Defendant’s Notice of Motion – Defendant’s Notice of Motion does not comply with California Rules of Court rule 3.1110, subdivision (a), which requires that a notice of motion “state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order.” Code of Civil Procedure section 1010 also requires that the notice of motion must state “the grounds upon which it will be made.”

Here, the Notice of Motion does not state the grounds on which Defendant is moving or any legal authority supporting the motion or issuance of the requested order.

III. Legal Standard

Standard for Taxing Costs Under the Song-Beverly Act – Pursuant to California Civil Code section 1794, subdivision (d), a prevailing buyer in a Song-Beverly action is entitled to recover a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, as determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of the action. A prevailing party includes the party with a net monetary recovery. (Code Civ. Proc., § 1032, subd. (a)(4).)

California Code of Civil Procedure section 1033.5 sets forth the specific categories of costs that a prevailing party may or may not be entitled to recover as a matter of right in civil litigation.

California Code of Civil Procedure § 1033.5 provides, in relevant part:

(a) The following items are allowable as costs under Section 1032:

(1) Filing, motion, and jury fees.

...

(3)(A) Taking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed.

...

(14) Fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents.

...

(b) The following items are not allowable as costs, except when expressly authorized by law:

(1) Fees of experts not ordered by the court.

(2) Investigation expenses in preparing the case for trial.

(3) Postage, telephone, and photocopying charges, except for

exhibits.

(4) Costs in investigation of jurors or in preparation for voir dire.

(5) Transcripts of court proceedings not ordered by the court.

(c) An award of costs shall be subject to the following:

(1) Costs are allowable if incurred, whether or not paid.

(2) Allowable costs shall be reasonably necessary to the conduct of

the litigation rather than merely convenient or beneficial to its

preparation.

(3) Allowable costs shall be reasonable in amount.

(4) Items not mentioned in this section and items assessed upon

application may be allowed or denied in the court's discretion.

Generally, the Court has discretion to award recovery of costs that are not listed as recoverable in subdivision (a) and not barred by subdivision (b). (Code Civ. Proc., § 1033.5, subd. (c)(4).) However, in Song-Beverly actions the Court must permit the prevailing buyer to recover such costs and expenses if reasonably incurred by the buyer in connection with the commencement and prosecution of the action. (Civ. Code, § 1794, subd. (d).) “[I]n enacting Civil Code section 1794, subdivision (d) the Legislature intended the phrase costs and expenses to cover items not included in the detailed statutory definition of costs set forth in Code of Civil Procedure section 1033.5.” (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 42.) Thus, a prevailing buyer in a Song-Beverly action may be entitled to recover costs and expenses otherwise typically barred by Code of Civil Procedure section 1033.5, subdivision (b), provided that they were reasonably incurred in commencement and prosecution of the action.

The party filing a memorandum of costs is not required to attach any supporting documents. (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) “[A] verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary.” (Bender v. County of Los Angeles (2013) 217 Cal.App.4th 968, 989, internal citations omitted; see also Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131-132 [“trial court erred in requiring additional proof from” the party claiming costs]; Santantonio v. Westinghouse Broadcasting Co. (1994) 25 Cal.App.4th 102, 116, 121 [“where a party shows a prima facie entitlement to costs, the burden is on an objector to prove the costs should be disallowed”].)

“[T]he mere filing of a motion to tax costs may be a “proper objection” to an item, the necessity of which appears doubtful, or which does not appear to be proper on its face.” (Nelson, supra, 72 Cal.App.4th 111, 131.) However, “[i]f the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (Ladas v. California State Automotive Assoc. (1993) 19 Cal.App.4th 761, 773-74.) The court’s first determination, is whether the statute expressly allows the particular item and whether it appears proper on its face. If so, the burden is on the objecting party to show it to be unnecessary or unreasonable. (Nelson, supra, 72 Cal.App.4th 111, 131.) Unreasonable costs include costs that were not reasonably necessary to the conduct of litigation or were not reasonable in amount. (Id at 130.)

If an item of cost does not appear proper on its face, the burden of showing that it is reasonable and necessary shifts to the party claiming the cost. (Nelson, supra, 72 Cal.App.4th 111, 131; Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267; but see Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308 [“Only after such costs are challenged by a motion to tax do the parties need to justify their claims by submitting documentation of the costs they have incurred.”].)

IV. Discussion

Application – Defendant moves to strike or tax costs from Plaintiff’s Memorandum in the amount of \$875.77 on the grounds that certain costs requested are unreasonable and unnecessary.

Plaintiff's Memorandum seeks costs totaling \$1,420.05, comprised of (1) \$775.25 in filing and motion fees, (2) \$150.00 in jury fees, (3) \$450.10 in deposition costs, (4) \$30.90 in service of process costs, and (5) \$11.80 for 'Other' costs, consisting only of the cost to download the Court's February 24, 2026 Minute Order.

Of these categories, Defendant objects to (1) \$275.67 in filing fees, (2) \$150.00 in jury fees, and (3) \$450.10 in deposition fees.

a. Applicable Standard

The Court first addresses the argument raised by Defendant both in its motion and on reply that Plaintiff bears the burden of proving the requested costs are reasonable and necessary. (See Motion, p. 3:24-4:17; Reply, p. 2:16-3:19.) However, Defendant's reliance on the burden-shifting mechanism is misplaced.

As discussed at length above, where a cost appears to be proper, the burden is on the moving party to make a showing that the costs are unreasonable or unnecessary. Only once Defendant makes such a showing, or if the costs appear facially improper, does the burden shift to Plaintiff to establish reasonableness or necessity of the costs. Defendant appears to argue that upon its filing of the motion to strike or tax the Memorandum and identification of specific charges objected to, it has properly lodged an objection to those costs, that no more is required, and the burden automatically shifts back to Plaintiff to demonstrate that the costs are allowable, reasonably necessary to litigation, and reasonable in amount. (Motion, p. 4:10-16.) However, Defendant omits that the burden only shifts upon proper objection, which includes a showing that the costs were not reasonable or necessary where they appear proper on their face, not merely putting forth an argument to that effect. (See Ladas, *supra*, 19 Cal.App.4th at 773-74 ["[i]f the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary"].)

Defendant's motion does procedurally comply with California Rules of Court rule 3.1700, which requires that where objection is made to less than the entire Memorandum, a motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and state why the item is objectionable. However, merely complying with the procedural requirements for filing an objection does not shift the burden back to Plaintiff if Defendant does not establish that the costs are unreasonable or unnecessary. (See Reply, p. 3:7-10 ["GM's motion did more than offer bald assertions—it pointed out specific costs that appeared excessive or unwarranted. This shifts the burden. The question is whether Counsel have now met their burden to justify those costs with competent evidence of necessity. They have not."].)

Plaintiff's Memorandum serves as *prima facie* evidence of the propriety of the items listed on it. Plaintiffs are under no obligation to provide supporting documentation in support of the Memorandum. California Rule of Court rule 3.1700(a)(1) requires that "the memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." Plaintiff's counsel Bobby C. Walker verified the memorandum of costs by signing, under penalty of perjury, a statement which reads: "I am counsel for the party who claims the costs listed above. To the best of my knowledge, the items of costs are correct and were necessarily incurred in this case." (Memorandum of Costs, p. 1.) Nothing more is required.

Therefore, unless the costs are facially unreasonable or Defendant makes a showing that the costs are unreasonable or unnecessary, the costs are recoverable. "[M]ore than a bare objection is needed to rebut the presumption that fees were reasonable and necessarily incurred." (*State of California v. Meyer* (1985) 174 Cal.App.3d 1061, 1075.)

b. Filing and Motion Fees

Defendant first objects to \$275.67 in filing fees related to "miscellaneous overhead costs," including the filing of Plaintiff's CMC Statement, Notice of Posting of Jury Fees, and Notice of Settlement, motions, oppositions, and a reply. (Motion, p. 5:1-3.) Defendant argues the Notice of Settlement is a purely administrative notice filed to inform the Court that the case has

resolved and requires no judicial decision, opposition, or argument, and is not a motion within the meaning of Code of Civil Procedure section 1033.5, subdivision (a)(1), that the costs associated with Plaintiff's Motion to Compel the Deposition of Defendant's PMQ, the reply, and the motions for leave to amend were optional costs that counsel elected to incur for one-sided and unnecessary motion practice that did not advance Plaintiff's case, and that for all of these filings, Plaintiff's counsel has not provided any receipts or backup documentation to substantiate these costs. (Motion, p. 5:3-8.)

Code of Civil Procedure section 1033.5, subdivision (a)(1) expressly authorizes recovery of filing fees, and separately, motion fees. There is no language in Section 1033.5 that supports Defendant's interpretation that a filing fee is only recoverable if it was incurred in the filing of a motion requiring opposition or argument.

As to the Notice of Settlement, the § 998 Settlement Offer does not contain any limitations on recoverable costs. (See Figura Decl., Ex. 4, ¶ 4.) California Rules of Court rule 3.1385(a)(1) requires that a plaintiff must immediately file written notice of the settlement with the Court once an entire case is settled. Plaintiff's Notice of Settlement is not a mere administrative or overhead cost, but is a required filing integral to the prosecution of the action, as it serves to inform the Court of the resolution of the case and effectively concludes the prosecution of Plaintiff's claims.

As to Plaintiff's CMC Statement, this is a filing required by the Court. On September 24, 2024, the Court set a CMC for February 2, 2025. California Rules of Court rule 3.725(a) requires each party to file a CMC Statement no later than 15 days before the CMC. This cost is expressly permitted by Section 1033.5(a), Section 1794(d), and was necessarily incurred in the prosecution and conduct of litigation.

As to Plaintiff's Notice of Posting of Jury Fees, Code of Civil Procedure section 631, subdivisions (b)-(c) requires a party demanding a jury in a civil action to pay a nonrefundable fee of \$150.00 on or before the date scheduled for the initial CMC. Failure to do so waives that party's right to a jury. (Code Civ. Proc., § 631, subd. (f)(5).) Plaintiff's filing of the Notice of Posting of Jury Fees served to inform the Court and Defendant, and to place on the record, that the fees were paid to avoid waiver of Plaintiff's right to a jury trial. Defendant has made no showing that this filing was unreasonably or unnecessarily incurred in the conduct of litigation or that recovery of this is precluded.

As to Plaintiff's motions for leave to amend, these costs are expressly permitted by statute and clearly relate to the prosecution and conduct of litigation. The pleadings control the scope of the action, and the motions were targeted to address the specific claims brought against Defendant. That costs must be "necessarily incurred" in litigation does not mean that the underlying filing must be "required." That these motions were "optional" does not remove them from Sections 1033.5 or 1794(d). Indeed, commencement of civil litigation, generally speaking, is in and of itself "optional."

As to the Motion to Compel the Deposition of Defendant's PMQ, Defendant argues it already agreed to produce documents subject to a protective order and produce its PMQ to testify on some of the requested topics, and the filing of the motion did nothing to advance Plaintiff's case, rendering it unnecessary. The Motion was never heard or ruled on, as the case settled prior to the hearing. However, on review of the Motion itself, it appears that Plaintiff noticed the deposition of Defendant's PMQ on February 18, 2025, and on April 8, 2025, Defendant objected to the NOD but agreed to produce its PMQ on some of the requested categories on a mutually agreed upon date. Plaintiff's counsel requested dates of availability on September 22, 2025, December 8, 2025, January 6, 2026, January 15, 2026, February 2, 2026, and February 4, 2026, along with leaving messages with Defense counsel requesting a phone call to meet and confer about the deposition. (See Figura MTC Depo Decl., ¶¶ 7-15.) It appears from the moving papers that Defendant never provided dates for its PMQ. Defendant makes no showing to the contrary. Defendant's agreement to produce its PMQ for some requested categories does not show that this motion was unnecessary or unreasonable where Defendant thereafter failed to provide dates of availability for roughly 10 months and ignored repeated efforts to schedule the deposition.

Accordingly, Defendant has failed to show that these costs are not reasonable, necessary, permitted, and recoverable. The Court declines to strike Plaintiff's request for these fees.

c. Jury Fees

Defendant next argues that it should not have to reimburse Plaintiff for the jury fees posted, as under California Law, jury fees are only recoverable when a trial occurs, and permitting recovery would be inconsistent with the statutory purpose of cost recovery as the case never went to trial. (Motion, p. 5:9-14.)

The case relied on by Defendant, *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 245 does not support Defendant's argument. The *Perko's* Court held that under Section 1033.5, subdivision (c)(2), a trial court is authorized to disallow recovery of costs otherwise allowable as a matter of right if the trial court determines that the costs were unnecessarily incurred. (*Ibid.*) Here, as discussed, it does not matter whether the case ultimately advanced to trial. Plaintiff was required to post \$150.00 in jury fees before the initial CMC to preserve her right to a jury trial. Section 1033.5, subdivision (a)(1) authorizes recovery of jury fees. Section 1794, subdivision (d) permits recovery of all costs reasonably and necessarily incurred in the course of litigation. Plaintiff's posting of jury fees to avoid waiver was necessary and reasonable in prosecuting her case.

The Court declines to strike Plaintiff's request for jury fees.

d. Deposition Fees for the Non-Appearance of Defendant's PMQ

Finally, Defendant moves to strike Plaintiff's request for the deposition fees incurred in documenting the nonappearance of Defendant's PMQ. (Motion, p. 5:15-19.) Defendant argues the fees were entirely unnecessary, as Defendant had already provided hundreds of pages of Bates-stamped documents describing the vehicle's repair history, and that the documentation of non-appearance did nothing to advance Plaintiff's case.

Defendant's argument is unpersuasive. Compliance with one form of discovery does not alleviate a party's obligation to comply with another form of discovery to which the requesting party is statutorily entitled. Under Code of Civil Procedure section 871.26, subdivision (c)(2), Plaintiff was entitled, within 120 days after Defendant filed its answer, to conduct her initial deposition of Defendant's PMQ on the topics set forth in Code of Civil Procedure section 871.26, subdivision (i), which includes questions relating to the nature and extent of the entire service history, warranty history, and repairs of the vehicle and questions relating to relevant repair procedures consulted and followed during the repairs. This right to conduct a deposition of Defendant's PMQ is in addition to Defendant's statutory obligation to provide, within 60 days of filing its answer, an initial disclosure of specifically defined documents, including the entire warranty transaction history for the vehicle, communications records related to repair orders or claims involving the vehicle, service manuals related to the vehicle's nonconformities, and motor vehicle information reports. (Code Civ. Proc., § 871.26, subd. (b), (h).) Moreover, documentary and testimonial evidence are fundamentally different, and it cannot be said that the deposition of a PMQ is rendered useless merely because Plaintiff was in receipt of certain documents related to the categories sought for deposition.

Defendant has not shown that the costs associated with obtaining a certificate of non-appearance for Defendant's PMQ were not reasonably incurred in the prosecution of the action.

Based on the foregoing, Defendant's motion is DENIED.

V. Conclusion

Defendant General Motors LLC's Motion to Strike or Tax Costs is DENIED.